



File No.: EXP202303610

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on March 3, 2023. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows:

“the respondent has installed a surveillance camera on their roof which, due to its location and orientation, is capable of capturing images of the claimant's residence, without having authorization for this.”

The claimant provides images of the camera's location, an Expert Report, and a Notarial Act in which the situation of the camera subject to the complaint is recorded, affirming that it is clearly oriented towards the claimant's residence (Documentary Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent on March 17, 2023, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was duly acknowledged as evidenced by the receipt that is part of the file.

THIRD: On May 5, 2023, a letter was received from the respondent confirming the presence of the camera(s) at their parents' residence, stating that they were installed due to “vandalism” by a neighbor on the roof of their house.

“That a sign has been placed in a visible area with the information required by the Data Protection Law.”

“That for the installation in compliance with the Data Protection Law, a security document has been prepared, which certifies compliance with the regulation.”

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FOURTH: On May 31, 2023, a new letter was received from the respondent emphasizing that the cameras were installed due to “vandalism,” and that this position of the camera is necessary for their protection.

Related documents are attached (Annex I).

“That photographs of the sign with better visibility are attached in compliance with the requirement made.”

FIFTH: On June 3, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

SIXTH: On July 10, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.c) of the GDPR and Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

SEVENTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public

Administrations (hereinafter, LPACAP), and the respondent submitted a written statement on August 13, 2023, in which, in summary, they stated the following:

"For security purposes, the objective is directed towards the roof which is my property, and that in any case, in an absolutely indirect manner, complying with the minimum allowed, without any invasion of privacy, it records a small portion of a brick party wall, without windows, which does not capture any image data of any natural person that could be subject to protection; it only directs the objective to a property of my own, which is my roof, to be able to ascertain in case it is necessary, who or whom are committing the vandalism acts that were reported to the competent security forces.

Specifically, my neighbor and complainant in this file, which is, at the very least, surprising, was engaged in carrying out works on my roof without any permission.

This party has attached in a previous writing various reports regarding acts of vandalism that were being carried out on my facilities, specifically on my roof, for which, advised by the security forces, and for the protection of my property, which was being subjected to various acts of vandalism, I installed the video camera focusing on my roof."

"That the mandatory hearing procedure is considered completed, taking into account the aforementioned statements and, consequently, the sanctioning procedure should be archived as compliance with the GDPR regulations is understood."

EIGHTH: On October 11, 2023, a was issued proposing the archiving of the procedure as it has not been demonstrated that the installed camera affects the data processing of third parties, thus not violating data protection regulations.

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NINTH: Upon consulting the database of this organization, the notification of the Proposal for Resolution was carried out on 23/10/23, without any additional statement being made in this regard. From the actions taken in this procedure and the documentation in the file, the following have been established:

PROVEN FACTS

First. The facts arise from the complaint dated 03/03/23, through which the following is conveyed:

"the party being complained against has installed a surveillance camera on their roof which, due to its location and orientation, is capable of capturing images of the complainant's residence, without having authorization for this" (folio no. 1).

Second. It is established that the main responsible party is B.B.B., with ID ***NIF.1, who does not deny having installed a camera for security reasons regarding their property.

Third. It is established that the orientation of the camera is exclusively towards the roof area of the respondent, as they have been a victim of various acts of vandalism.

Fourth. It is established that there is an informational sign compliant with current data protection regulations.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Following the amendments made to the current LOPDGDD (LO 3/2018, December 5) by Law 11/2023,

of May 8, on the transposition of European Union directives regarding the accessibility of certain products and services, migration of highly qualified persons, taxation, and digitalization of notarial and registry actions; and which modifies Law 12/2011, of May 27, on civil liability for nuclear damage or damage caused by radioactive materials, the procedural deadline established in Article 64.2 "in fine" is applied to this procedure.

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The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the actions will be archived.

II

In this case, the complaint dated 03/03/23 is examined, through which the following is conveyed: "presence of a camera oriented towards my property that could affect my privacy, disregarding the warnings in this regard and affecting me by this"

Article 5.1 c) of the GDPR states the following: Personal data shall be:

"adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')."

It should be noted that individuals are responsible for ensuring that the systems installed comply with current legislation, demonstrating that they meet all the requirements mandated by the applicable regulations.

The installation of such devices must have the requisite informational sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

In any case, cameras must be oriented towards private space, avoiding intimidating neighboring residents with such devices, as well as controlling transit areas without justified cause.

Furthermore, such devices cannot capture images of public space, as this is the exclusive competence of the State Security Forces and Corps.

The installation of video cameras is subject to an authorization regime, which will be granted, if applicable, following a report from a collegiate body presided over by a Magistrate, in which members dependent on the authorizing Administration shall not be in the majority—Article 3 LO 4/1997, August 4.

It is worth noting that even in the case of a "simulated" camera, it must be preferably oriented towards private space, as it is considered that such devices can affect the privacy of third parties, who feel intimidated by it under the belief that they are subject to permanent recording.

Individuals cannot install devices for capturing images of public space and/or the transit of third parties, outside the cases permitted by the regulations.

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The purpose of this type of devices must be the security of the property and its inhabitants, avoiding the infringement of third-party rights that may feel intimidated by them.

The cameras must be limited to the protection of the property owned by the holder in such a way that they do not affect the area of third parties who may feel intimidated by them, as they affect their free transit area.

III

On 13/08/23, a written statement was received from the party being claimed, collaborating with this organization, stating that the installation of the camera is due to security reasons concerning the roof area.

In its defense, it claims to be a victim of various acts of vandalism in the roof area, providing

documentation regarding a sanction for irregular works by the claiming neighbor.

After analyzing the documentary evidence provided, no capture of the private space of a third party is observed, as the camera's capture is limited to the exclusive area of its exterior roof.

The aforementioned facts, once analyzed within the framework of data protection, lead to the conclusion that the presence of the camera is necessary due to the acts of vandalism that the roof has suffered, considering the presence of the device as a proportionate measure to prevent such behaviors.

This organization has extensively expressed its rejection of acts of vandalism of any kind, considering the presence of image recording devices as an appropriate measure to identify the alleged perpetrator, with the images needing to be made available to the competent authorities for their analysis and evaluation.

It is also assessed that the roof area is a space that affects both parties (claimant/claimed) given the proximity of the properties, not being a measure that affects the rights of third parties, so given the location of the camera installation, its impact is minimal; aside from the fact that the roof area is not the usual space where the intimate life of the alleged affected party takes place.

IV

The principle of the presumption of innocence prevents the imposition of an administrative infringement when no evidence has been obtained and verified that substantiates the facts that motivate the accusation or the involvement of the alleged infringer in them. Applying the principle "in dubio pro reo" in case of doubt regarding a specific and determined fact, which obliges in any case to resolve such doubt in the most favorable way for the interested party.

The presumption of innocence must govern without exceptions in the sanctioning order and must be respected in the imposition of any sanctions, as the exercise of the *ius puniendi* in its various manifestations is conditioned on the play of evidence and a contradictory procedure in which the parties can defend their positions. In this sense, the Constitutional Court in its Judgment 76/1990, of 26/04, considers that the right to the presumption of innocence entails: "that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof corresponds to the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the result of the evidence presented, freely evaluated by the sanctioning body, must translate into an acquittal ruling.

The presumption of innocence governs without exceptions in the sanctioning order and must be respected in the imposition of any sanction, whether criminal or administrative (TCO 13/1981), as the exercise of the sanctioning right in any of its manifestations is conditioned on the play of evidence and a contradictory procedure in which the parties can defend their own positions.

According to this principle, no sanction can be imposed based on the culpability of the accused if there is no evidentiary activity that, in the assessment of the authorities or bodies called to resolve, destroys this presumption (TCO Auto 3-12-81).

V

In accordance with the above, it is not considered proven that any provision has been violated within the framework of data protection, therefore the filing of the present proceedings is proposed.

The presence of an informative sign is sufficient to place it in a visible location in the access area to the private property of the claimed party, given that the location where the device is installed is a roof area of the property.

Finally, the parties are reminded of the significance of the rights at stake, and they should avoid instrumentalizing this organization with issues related to "neighborhood disputes," which should be referred to the appropriate judicial instances, recommending that they redirect their relationship to the minimum rules of good neighborly coexistence.

Therefore, in accordance with the applicable legislation and based on the aforementioned, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ORDER the FILING of the current procedure as no infringement has been proven in the matter at hand.

SECOND: TO NOTIFY this resolution to Mr. B.B.B.

In accordance with the provisions of Article 50 of the LOPDGGD, this Resolution will be made public

once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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